

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Valuation (Scotland) Act, 1854 ...	17 & 18 Vict. c. 91.
Industrial and Provident Societies Act, 1893	56 & 57 Vict. c. 39.
Housing Act, 1914	4 & 5 Geo. 5. c. 31.
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920	10 & 11 Geo. 5. c. 17.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Rent and Mortgage Interest Restrictions Act, 1939	2 & 3 Geo. 6. c. 71.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Rent of Furnished Houses Control (Scotland) Act, 1943	6 & 7 Geo. 6. c. 44.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Acquisition of Land (Authorisation Proce- dure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Water (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 31.
Landlord and Tenant (Rent Control) Act, 1949	12, 13 & 14 Geo. 6. c. 40.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Reserve and Auxiliary Forces (Protection of Civil Interests) Act, 1951	14 & 15 Geo. 6. c. 65.
Housing (Scotland) Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 63.

CHAPTER 51

An Act to extend the application of the Hire-Purchase Act, 1938, and the Hire Purchase and Small Debt (Scotland) Act, 1932; and to make further provision as to postponed orders for specific delivery of goods under the said Act of 1938. [30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The hire-purchase agreements and credit-sale agree- Extension of
ments to which the Hire-Purchase Act, 1938, applies shall application of
include— Hire-Purchase
Act, 1938.

(a) an agreement relating to livestock under which the hire- 1 & 2 Geo. 6.
purchase price or total purchase price, as the case may c. 53.
be, does not exceed one thousand pounds;

(b) any other agreement under which the said price does not exceed three hundred pounds,

and accordingly in paragraph (b) of section one of that Act for the words "five hundred pounds" there shall be substituted the words "one thousand pounds"; in paragraph (c) of that section for the words "one hundred pounds" there shall be substituted the words "three hundred pounds"; and paragraph (a) of that section, and so much of subsection (1) of section twenty-one of that Act as defines the expression "motor vehicle", are hereby repealed.

(2) In relation to agreements of a class to which the said Act applies by virtue only of this section, section twenty of that Act (which makes provision for a limited application of that Act to hire-purchase agreements made before the commencement of that Act) shall apply as if for any reference therein to the commencement of that Act there were substituted a reference to the commencement of this Act.

Further provisions relating to postponed orders for specific delivery of goods.

2.—(1) Where a postponed order for the specific delivery of goods to the owner has been made, whether before or after the commencement of this Act, under paragraph (b) of subsection (4) of section twelve of the Hire-Purchase Act, 1938, the powers of the court under paragraphs (a) and (c) of subsection (4) of section thirteen of that Act (which respectively enable the court to vary the conditions of the postponement or to make an order for the delivery of part of the goods to the owner and for the transfer to the hirer of the owner's title to the remainder) may be exercised, notwithstanding that any condition of the postponement has not been complied with, at any time before the goods are delivered to the owner in accordance with a warrant issued in pursuance of the order; and where such a warrant has been issued (whether before or after the commencement of this Act), the court shall—

(a) if the court varies the conditions of the postponement under the said paragraph (a), suspend the warrant on the like conditions;

(b) if the court makes an order under the said paragraph (c) for the specific delivery of a part of the goods to the owner and for the transfer to the hirer of the owner's title to the remaining part thereof, cancel the warrant so far as it provides for the delivery of the last-mentioned part of the goods.

(2) At any time before the delivery of goods to the owner in accordance with a warrant issued as aforesaid, the warrant may, so far as it provides for the delivery of the goods, be discharged by the payment to the owner by the hirer or any guarantor of the whole of the unpaid balance of the hire-purchase price; and in any such case the owner's title to the goods shall vest in the hirer.

(3) If in an action to which the said section twelve applies an offer as to conditions for the postponement of the operation of an order under paragraph (b) of subsection (4) of that section is made by the hirer and accepted by the owner in accordance with rules of court, an order under that paragraph may thereupon be made by the court in accordance with the said offer without hearing evidence as to matters specified in the said paragraph (b) or in subsection (5) of that section:

Provided that where a guarantor is a party to the action, no such order shall be made before the date fixed for the hearing of the action.

(4) In this section expressions defined by the Hire-Purchase Act, 1938, have the same meaning as in that Act.

3.—(1) For the purposes of the Hire-Purchase Act, 1938, any sum payable by the hirer under a hire-purchase agreement by way of a deposit or other initial payment, or credited or to be credited to him under such an agreement on account of any such deposit or payment, whether that sum is to be or has been paid to the owner or to any other person or is to be or has been discharged by a payment of money or by the transfer or delivery of goods or by any other means, shall form part of the hire-purchase price. Amendment of Definition of Hire-Purchase Price.

(2) This section shall apply for the purposes of the said Act of 1938 in its application to agreements made before the commencement of this Act, except in relation to any note or memorandum of such an agreement made for the purposes of section two of the said Act of 1938.

4.—(1) In section one of the Hire Purchase and Small Debt (Scotland) Act, 1932 (which defines the contracts to which that Act applies) for the words "twenty pounds", in both places where those words occur, there shall be substituted the words "three hundred pounds". Extension of application of Hire Purchase and Small Debt (Scotland) Act, 1932.

(2) For the purposes of the said Act of 1932, the expression "instalment" includes (without prejudice to the provisions of subsection (1) of section ten of that Act) any sum credited or to be credited to the hirer or the purchaser on account of any deposit or premium payable by him, whether that sum is to be or has been paid to the owner or to any other person or is to be or has been discharged by a payment of money or by the transfer or delivery of goods or by any other means. 22 & 23 Geo. 5. c. 38.

In this subsection the expression "hirer", "purchaser" and "owner" have the like meanings as in the said Act of 1932.

(3) This section shall not apply in relation to any contract entered into before the commencement of this Act.

Commence-
ment, extent,
and short title.

5.—(1) This Act shall come into operation at the expiration of a period of one month beginning with the date on which it is passed.

(2) This Act shall not extend to Northern Ireland.

(3) This Act may be cited as the Hire-Purchase Act, 1954.

CHAPTER 52

An Act to increase the limits imposed by section thirty-nine of the Electricity Act, 1947, on the amount outstanding in respect of borrowings of the British Electricity Authority and Area Electricity Boards and by section forty-two of the Gas Act, 1948, on the amount outstanding in respect of borrowings of the Gas Council and Area Gas Boards. [30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
borrowing
powers.

1. The enactments limiting the borrowing powers of the British Electricity Authority and Area Electricity Boards, and of the Gas Council and Area Gas Boards, by reference to the aggregate amounts of stock and loans outstanding shall be amended as follows:—

10 & 11 Geo.
6. c. 54.

(a) in subsection (3) of section thirty-nine of the Electricity Act, 1947, for the words “seven hundred million pounds” there shall be substituted the words “fourteen hundred million pounds”; and

11 & 12 Geo.
6. c. 67.

(b) in subsection (3) of section forty-two of the Gas Act, 1948, for the words “two hundred and fifty million pounds” there shall be substituted the words “four hundred and fifty million pounds”;

and the other provisions of the said Acts shall have effect accordingly, and in particular the provisions which authorise the Treasury to give guarantees with respect to stock or loans and which provide for charging sums required for fulfilling any such guarantee on the Consolidated Fund and for paying into the Exchequer any sums received by way of repayment of sums so required or by way of interest thereon.

Short title.

2. This Act may be cited as the Gas and Electricity (Borrowing Powers) Act, 1954.